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NO. 62. SATURDAY, JANUARY 20, 1722. *An Enquiry Into The Nature And Extent Of Liberty; With Its Loveliness And Advantages, And The Vile Effects Of Slavery.* (Gordon)

Sir,

I have shewn, in a late paper, wherein consists the difference between free and arbitrary governments, as to their frame and constitution;' and in this and the following, I shall shew their different spirit and effects. But first I shall shew wherein liberty itself consists.

By liberty, I understand the power which every man has over his own actions, and his right to enjoy the fruit of his labour, art, and industry, as far as by it he hurts not the society, or any members of it, by taking from any member, or by hindering him from enjoying what he himself enjoys. The fruits of a man's honest industry are the just rewards of it, ascertained to him by natural and eternal equity, as is his title to use them in the manner which he thinks fit: And thus, with the above limitations, every man is sole lord and arbiter of his own private actions and property. A character of which no man living can divest him but by usurpation, or his own consent.

The entering into political society, is so far from a departure from his natural right, that to preserve it was the sole reason why men did so; and mutual protection and assistance is the only reasonable purpose of all reasonable societies. To make such protection practicable, magistracy was formed, with power to defend the innocent from violence, and to punish those that offered it; nor can there be any other pretence for magistracy in the world. In order to this good end, the magistrate is entrusted with conducting and applying the united force of the community; and with exacting such a share of every man's property, as is necessary to preserve the whole, and to defend every man and his property from foreign and domestick injuries. These are the boundaries of the power of the magistrate, who deserts his function whenever he breaks them. By the laws of society, he is more limited and restrained than any man amongst them; since, while they are absolutely free in all their actions, which purely concern themselves; all his actions, as a publick person, being for the sake of society, must refer to it, and answer the ends of it.

It is a mistaken notion in government, that the interest of the majority is only to be consulted, since in society every man has a right to every man's assistance in the enjoyment and defence of his private property; otherwise the greater number may sell the lesser, and divide their estates amongst themselves; and so, instead of a society, where all peaceable men are protected, become a conspiracy of the many against the minority. With as much equity may one man wantonly dispose of all, and violence may be sanctified by mere power.

And it is as foolish to say, that government is concerned to meddle with the private thoughts and actions of men, while they injure neither the society, nor any of its

members. Every man is, in nature and reason, the judge and disposer of his own domestick affairs; and, according to the rules of religion and equity, every man must carry his own conscience. So that neither has the magistrate a right to direct the private behaviour of men; nor has the magistrate, or any body else, any manner of power to model people's speculations, no more than their dreams. Government being intended to protect men from the injuries of one another, and not to direct them in their own affairs, in which no one is interested but themselves; it is plain, that their thoughts and domestick concerns are exempted entirely from its jurisdiction: In truth, men's thoughts are not subject to their own jurisdiction.

Idiots and lunaticks indeed, who cannot take care of themselves, must be taken care of by others: But whilst men have their five senses, I cannot see what the magistrate has to do with actions by which the society cannot be affected; and where he meddles with such, he meddles impertinently or tyrannically. Must the magistrate tie up every man's legs, because some men fall into ditches? Or, must he put out their eyes, because with them they see lying vanities? Or, would it become the wisdom and care of governors to establish a travelling society, to prevent people, by a proper confinement, from throwing themselves into wells, or over precipices; or to endow a fraternity of physicians and surgeons all over the nation, to take care of their subjects' health, without being consulted; and to vomit, bleed, purge, and scarify them at pleasure, whether they would or no, just as these established judges of health should think fit? If this were the case, what a stir and hubbub should we soon see kept about the established potions and lancets? Every man, woman, or child, though ever so healthy, must be a patient, or woe be to them! The best diet and medicines would soon grow pernicious from any other hand; and their pills alone, however ridiculous, insufficient, or distasteful, would be attended with a blessing.

Let people alone, and they will take care of themselves, and do it best; and if they do not, a sufficient punishment will follow their neglect, without the magistrate's interposition and penalties. It is plain, that such busy care and officious intrusion into the personal affairs, or private actions, thoughts, and imaginations of men, has in it more craft than kindness; and is only a device to mislead people, and pick their pockets, under the false pretence of the publick and their private good. To quarrel with any man for his opinions, humours, or the fashion of his clothes, is an offence taken without being given. What is it to a magistrate how I wash my hands, or cut my corns; what fashion or colours I wear, or what notions I entertain, or what gestures I use, or what words I pronounce, when they please me, and do him and my neighbour no hurt? As well may he determine the colour of my hair, and control my shape and features.

True and impartial liberty is therefore the right of every man to pursue the natural, reasonable, and religious dictates of his own mind; to think what he will, and act as he thinks, provided he acts not to the prejudice of another; to spend his own money himself, and lay out the produce of his labour his own way; and to labour for his own pleasure and profit, and not for others who are idle, and would live and riot by pillaging and oppressing him, and those that are like him.

So that civil government is only a partial restraint put by the laws of agreement and society upon natural and absolute liberty, which might otherwise grow licentious: And tyranny is an unlimited restraint put upon natural liberty, by the will of one or a few. Magistracy, amongst a free people, is the exercise of power for the sake of the people; and tyrants abuse the people, for the sake of power. Free government is the protecting the people in their liberties by stated rules: Tyranny is a brutish struggle for unlimited liberty to one or a few, who would rob all others of their liberty, and act by no rule but lawless lust.

So much for an idea of civil liberty. I will now add a word or two, to shew how much it is the delight and passion of mankind; and then shew its advantages.

The love of liberty is an appetite so strongly implanted in the nature of all living creatures, that even the appetite of self-preservation, which is allowed to be the strongest, seems to be contained in it; since by the means of liberty they enjoy the means of preserving themselves, and of satisfying their desires in the manner which they themselves choose and like best. Many animals can never be tamed, but feel the bitterness of restraint in the midst of the kindest usage; and rather than bear it, grieve and starve themselves to death; and some beat out their brains against their prisons.

Where liberty is lost, life grows precarious, always miserable, often intolerable. Liberty is, to live upon one's own terms; slavery is, to live at the mere mercy of another; and a life of slavery is, to those who can bear it, a continual state of uncertainty and wretchedness, often an apprehension of violence, often the lingering dread of a violent death: But by others, when no other remedy is to be had, death is reckoned a good one. And thus, to many men, and to many other creatures, as well as men, the love of liberty is beyond the love of life.

This passion for liberty in men, and their possession of it, is of that efficacy and importance, that it seems the parent of all the virtues: And therefore in free countries there seems to be another species of mankind, than is to be found under tyrants. Small armies of Greeks and Romans despised the greatest hosts of slaves; and a million of slaves have been sometimes beaten and conquered by a few thousand freemen. Insomuch that the difference seemed greater between them than between men and sheep. It was therefore well said by Lucullus, when, being about to engage the great King Tigranes's army, he was told by some of his officers, how prodigious great the same was, consisting of between three and four hundred thousand men: "No matter," said that brave Roman, drawing up his little army of fourteen thousand, but fourteen thousand *Romans*: "No matter; the lion never enquires into the number of the sheep." And these royal troops proved no better; for the Romans had little else to do but to kill and pursue; which yet they could scarce do for laughing; so much more were they diverted than animated by the ridiculous dread and sudden flight of these imperial slaves and royal cowards.

Men eternally cowed and oppressed by haughty and insolent governors, made base themselves by the baseness of that sort of government, and become slaves by ruling over slaves, want spirit and souls to meet in the field freemen, who scorn oppressors,

and are their own governors, or at least measure and direct the power of their governors.

Education alters nature, and becomes stronger. Slavery, while it continues, being a perpetual awe upon the spirits, depresses them, and sinks natural courage; and want and fear, the concomitants of bondage, always produce despondency and baseness; nor will men in bonds ever fight bravely, but to be free. Indeed, what else should they fight for; since every victory that they gain for a tyrant, makes them poorer and fewer; and, increasing his pride, increases his cruelty, with their own misery and chains?

Those, who, from terror and delusion, the frequent causes and certain effects of servitude, come to think their governors greater than men, as they find them worse, will be as apt to think themselves less: And when the head and the heart are thus both gone, the hands will signify little. They who are used like beasts, will be apt to degenerate into beasts. But those, on the contrary, who, by the freedom of their government and education, are taught and accustomed to think freely of men and things, find, by comparing one man with another, that all men are naturally alike; and that their governors, as they have the same face, constitution, and shape with themselves, and are subject to the same sickness, accidents, and death, with the meanest of their people; so they possess the same passions and faculties of the mind which their subjects possess, and not better. They therefore scorn to degrade and prostrate themselves, to adore those of their own species, however covered with titles, and disguised by power: They consider them as their own creatures; and, as far as they surmount themselves, the work of their own hands, and only the chief servants of the state, who have no more power to do evil than one of themselves, and are void of every privilege and superiority, but to serve them and the state. They know it to be a contradiction in religion and reason, for any man to have a right to do evil; that not to resist any man's wickedness, is to encourage it; and that they have the least reason to bear evil and oppression from their governors, who of all men are the most obliged to do them good. They therefore detest slavery, and despise or pity slaves; and, adoring liberty alone, as they who see its beauty and feel its advantages always will, it is no wonder that they are brave for it.

Indeed liberty is the divine source of all human happiness. To possess, in security, the effects of our industry, is the most powerful and reasonable incitement to be industrious: And to be able to provide for our children, and to leave them all that we have, is the best motive to beget them. But where property is precarious, labour will languish. The privileges of thinking, saying, and doing what we please, and of growing as rich as we can, without any other restriction, than that by all this we hurt not the publick, nor one another, are the glorious privileges of liberty; and its effects, to live in freedom, plenty, and safety.

These are privileges that increase mankind, and the happiness of mankind. And therefore countries are generally peopled in proportion as they are free, and are certainly happy in that proportion: And upon the same tract of land that would maintain a hundred thousand freemen in plenty, five thousand slaves would starve. In Italy, fertile Italy, men die sometimes of hunger amongst the sheaves, and in a plentiful harvest; for what they sow and reap is none of their own; and their cruel and

greedy governors, who live by the labour of their wretched vassals, do not suffer them to eat the bread of their own earning, nor to sustain their lives with their own hands.

Liberty naturally draws new people to it, as well as increases the old stock; and men as naturally run when they dare from slavery and wretchedness, whithersoever they can help themselves. Hence great cities losing their liberty become deserts, and little towns by liberty grow great cities; as will be fully proved before I have gone through this argument. I will not deny, but that there are some great cities of slaves: But such are only imperial cities, and the seats of great princes, who draw the wealth of a continent to their capital, the center of their treasure and luxury. Babylon, Antioch, Seleucia, and Alexandria, were great cities peopled by tyrants; but peopled partly by force, partly by the above reason, and partly by grants and indulgencies. Their power, great and boundless as it was, could not alone people their cities; but they were forced to soften authority by kindness; and having brought the inhabitants together by force, and by driving them captive like cattle, could not keep them together, without bestowing on them many privileges, to encourage the first inhabitants to stay, and to invite more to come.

This was a confession in those tyrants, that their power was mischievous and unjust; since they could not erect one great city, and make it flourish, without renouncing in a great measure their power over it; which, by granting it these privileges, in effect they did. These privileges were fixed laws, by which the trade and industry of the citizens were encouraged, and their lives and properties ascertained and protected, and no longer subjected to the laws of mere will and pleasure: And therefore, while these free cities, enjoying their own liberties and laws, flourished under them, the provinces were miserably harrassed, pillaged, dispeopled, and impoverished, and the inhabitants exhausted, starved, butchered, and carried away captive.

This shews that all civil happiness and prosperity is inseparable from liberty; and that tyranny cannot make men, or societies of men, happy, without departing from its nature, and giving them privileges inconsistent with tyranny. And here is an unanswerable argument, amongst a thousand others, against absolute power in a single man. Nor is there one way in the world to give happiness to communities, but by sheltering them under certain and express laws, irrevocable at any man's pleasure.

There is not, nor can be, any security for a people to trust to the mere will of one, who, while his will is his law, cannot protect them if he would. The number of sycophants and wicked counsellors, that he will always and necessarily have about him, will defeat all his good intentions, by representing things falsely, and persons maliciously; by suggesting danger where it is not, and urging necessity where there is none; by filling their own coffers, under colour of filling his, and by raising money for themselves, pretending the publick exigencies of the state; by sacrificing particular men to their own revenge, under pretence of publick security; and by engaging him and his people in dangerous and destructive wars, for their own profit or fame; by throwing publick affairs into perpetual confusion, to prevent an enquiry into their own behaviour; and by making him jealous of his people, and his people of him, on purpose to manage and mislead both sides.

By all these, and many more wicked arts, they will be constantly leading him into cruel and oppressive measures, destructive to his people, scandalous and dangerous to himself; but entirely agreeable to their own spirit and designs. Thus will they commit all wickedness by their master's authority, against his inclinations, and grow rich by the people's poverty, without his knowledge; and the royal authority will be first a warrant for oppression, afterwards a protection from the punishment due to it. For, in short, the power of princes is often little else but a stalking-horse to the intrigues and ambition of their minister.

But if the disposition of such a prince be evil, what must be the forlorn condition of his people, and what door of hope can remain for common protection! The best princes have often evil counsellors, the bad will have no other: And in such a case, what bounds can be set to their fury, and to the havock they will make? The instruments and advisers of tyranny and depredation always thrive best and are nearest their ends, when depredation and tyranny run highest: When most is plundered from the people, their share is greatest; we may therefore suppose every evil will befall such a people, without supposing extravagantly. No happiness, no security, but certain misery, and a vile and precarious life, are the blessed terms of such a government—a government which necessarily introduces all evils, and from the same necessity neither must nor can redress any.

The nature of his education, bred up as he ever is in perpetual flattery, makes him haughty and ignorant; and the nature of his government, which subsists by brutish severity and oppression, makes him cruel. He is inaccessible, but by his ministers, whose study and interest will be to keep him from knowing or helping the state of his miserable people. Their master's knowledge in his own affairs, would break in upon their scheme and power; they are not likely to lay before him representations of grievances caused by themselves; nor, if they be the effects of his own barbarity and command, will he hear them.

Even where absolute princes are not tyrants, there ministers will be tyrants. But it is indeed impossible for an arbitrary prince to be otherwise, since oppression is absolutely necessary to his being so. Without giving his people liberty, he cannot make them happy; and by giving them liberty, he gives up his own power. So that to be and continue arbitrary, he is doomed to be a tyrant in his own defence. The oppression of the people, corruption, wicked counsellors, and pernicious maxims in the court, and every where baseness, ignorance, and chains, must support tyranny, or it cannot be supported. So that in such governments there are inevitable grievances, without possible redress; misery, without mitigation or remedy; whatever is good for the people, is bad for their governors; and what is good for the governors, is pernicious to the people.

*G I am, &c.*